

**THE GAZETTE OF INDIA
EXTRAORDINARY
PART – III – SECTION 4
PUBLISHED BY AUTHORITY
NEW DELHI, May 8, 2019**

**SECURITIES AND EXCHANGE BOARD OF INDIA
NOTIFICATION
Mumbai, the 8th May, 2019**

**SECURITIES AND EXCHANGE BOARD OF INDIA
(EMPLOYEES' SERVICE) (AMENDMENT) REGULATIONS, 2019**

No. SEBI/LAD-NRO/GN/2019/15.– In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following regulations to further amend the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, namely,–

1. These regulations may be called the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2019.
2. They shall come into force on the date of their publication in the Official Gazette.
3. In the Securities and Exchange Board of India (Employees' Service) Regulations, 2001, -
 - (1) in regulation 36A, in sub-regulation (5),–
 - a. in clause (a), after the words " house allowance" following words and explanation shall be inserted, namely,

"and claims for medical treatment availed in India:

Explanation:- For the purpose of this clause, claim for the medical treatment, shall include, medical insurance, claim from Medical Assistance Fund, non-policy medical claims, eye refraction and annual health check-up; "

- b. after the existing clause (i), the following new clause shall be inserted, namely, –

"(ia) A female employee, who leaves the services of the Board by way of resignation or voluntary retirement during the special hardship leave or within five years after resuming office after availing such leave, shall be liable to pay to the Board, an amount equal to the entire house allowance and medical claims paid during such leave:

Provided that after approval of the competent authority, based on requisite documentary evidence, examination and certification by the Medical Officer of the Board, the payment of said amount from the female employee, who has availed special hardship leave on health grounds of self and that being the reason for which she is unable to resume office may be waived;"

Sd/-

AJAY TYAGI
CHAIRMAN

SECURITIES AND EXCHANGE BOARD OF INDIA

Footnote:

1. The Securities and Exchange Board of India (Employees' Service) Regulations, 2001, were published in the Gazette of India on 6th September, 2001 vide S.O. No. 857(E).

2. They were subsequently amended –

- (a) On 23rd December, 2003 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2003 vide F. No. SEBI/LE/15/2003.

- (b) On 25th May, 2004 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2004 vide S.O. No.623 (E).
- (c) On 11th April, 2007 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2007 vide F. No.11/LC/GN/2006/2143.
- (d) On 14th January, 2010 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2010 vide notification No. LADNRO/GN/2009-10/28/190983.
- (e) On 12th October, 2010 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2010 vide notification No. LAD-NRO/GN/2010-11/17/22954.
- (f) On 10th October, 2011 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2011 vide notification No. LAD-NRO/GN/2011-12/26/31671.
- (g) On 2nd May 2012 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2012 vide notification No. LADNRO/GN/2012-13/03/5290.
- (h) On 19th November 2012 by the Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2012 vide notification No. LAD-NRO/GN/2012-13/22/5429.
- (i) On 8th October, 2013 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2013 vide notification No. LADNRO/GN/2013-14/27/6721.
- (j) On 26th February, 2015 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2015 vide notification No. LADNRO/GN/2014-15/22/366.
- (k) On 21st April, 2015 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2015 vide notification No. SEBINRO/OIAE/GN/2015-16/002.
- (l) On 30th November, 2016 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/016.
- (m) On 15th December, 2016 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2016 vide notification No. SEBI/LAD/NRO/GN/2016-17/024.

- (n) On 27th April, 2017 by the Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/001.
- (o) On 17th May, 2017 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2017 vide notification No. SEBI/LAD/NRO/GN/2017-18/002.
- (p) On 13th July, 2017 by Securities and Exchange Board of India (Employees' Service) (Third Amendment) Regulations, 2017 vide notification No. SEBI/LAD-NRO/GN/2017-18/010.
- (q) On 27th April, 2018 by Securities and Exchange Board of India (Employees' Service) (Amendment) Regulations, 2018 vide notification No. SEBI/LAD-NRO/GN/2018/09.
- (r) On 31st May, 2018 by Securities and Exchange Board of India (Employees' Service) (Second Amendment) Regulations, 2018 vide notification No. SEBI/LAD-NRO/GN/2018/18.
- (s) On 13rd August, 2018 by Securities and Exchange Board of India (Employees' Service) (Third Amendment) Regulations, 2018 vide notification No. SEBI/LAD-NRO/GN/2018/29.
